

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Megan E. Lovelady, Texas State Bar No. 24093477 Lovelady Law Office 409 West Center Street, Kyle, TX 78640 TELEPHONE NO.: 512-904-0244 FAX NO. (Optional): 512-233-0747 E-MAIL ADDRESS (Optional): meg@loveladylawoffice.com ATTORNEY FOR (Name): Plaintiff Leslie Yvonne Richter		FOR COURT USE ONLY FILED FEB 07 2024 Clerk of the Court Superior Court of CA County of Santa Clara BY T. PHAN DEPUTY	
Court for county in which discovery is to be conducted: SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 191 N. First Street MAILING ADDRESS: 191 N. First Street CITY AND ZIP CODE: San Jose, CA 95113 BRANCH NAME: Downtown Superior Court			
Court in which action is pending: Name of Court: COUNTY COURT AT LAW NO. 1, WICHITA COUNTY, TEXAS STREET ADDRESS: 900 7th Street MAILING ADDRESS: 900 7th Street CITY, STATE, AND ZIP CODE: Wichita Falls, TX 76301 COUNTRY: USA			
XXXXXXXXXXXXXXXX PLAINTIFF/PETITIONER: IN THE ESTATE OF MARGARET TERESA SCHMIDT, DECEASED XXXXXXXXXXXXXXXX DEFENDANT/RESPONDENT: (Continued on Attachment 1)		CALIFORNIA CASE NUMBER (if any assigned by court) 24CV430537	
APPLICATION FOR DISCOVERY SUBPOENA IN ACTION PENDING OUTSIDE CALIFORNIA		CASE NUMBER (of action pending outside California): CCL1-PR2020-0688	

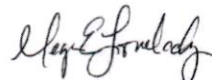
1. Applicant (name): **Leslie Yvonne Richter** is (check one):
☒ Plaintiff ☐ Petitioner ☐ Defendant ☐ Respondent ☐ Other (specify):
 in the above action.
2. Applicant requests that this court issue a subpoena for discovery under Code of Civil Procedure sections 2029.100 – 2029.900 to (name and address of deponent or person in control of property): **STAR ONE CREDIT UNION (BANKING)**
1306 Bordeaux Drive
Sunnyvale, CA 94089
3. Attached is (check one): ☐ the original ☒ a true and correct copy of the document from the court in which the action is pending that requires the person in 2 to (check all that apply):
 a. ☐ attend and give testimony at a deposition;
 b. ☒ produce and permit inspection and copying of designated materials, information, or tangible things in the possession, custody, or control of the deponent; and the appearance at deposition by written questions;
 c. ☐ permit the inspection of premises under the control of the deponent.
4. Applicant submits with this application a proposed subpoena that includes terms identical to those in the document from the out-of-state court. (Code of Civil Procedure section 2029.300(d).)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: **February 6, 2024**

Megan E. Lovelady

(TYPE OR PRINT NAME)



(SIGNATURE OF ATTORNEY OR PARTY WITHOUT ATTORNEY)

Note: This application must be accompanied by the fee specified in Government Code section 70626. A discovery subpoena must be personally served on the deponent in compliance with California law, including Code of Civil Procedure section 1985.

SHORT TITLE: IN THE ESTATE OF MARGARET TERESA SCHMIDT	CASE NUMBER: Case No. CCL1-PR2020-0688
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ATTACHMENT (Number): 1

(This Attachment may be used with any Judicial Council form.)

IN THE ESTATE OF MARGARET TERESA SCHMIDT, DECEASED,

and

LESLIE YVONNE RICHTER, in her capacity as Independent Executor of the Estate of Margaret Teresa Schmidt, Deceased; in her Individual Capacity; in her Capacity as a Beneficiary of the Revocable Inter Vivos Trust; and as a Beneficiary of the Revocable Inter Vivos Trust as Amended; in her Capacity as a Beneficiary of the Last Will and Testament of Margaret Teresa Schmidt, Deceased; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased; Plaintiff,

vs.

MARGARET ANN MOFFETT, Individually; in her Capacity as Purported Attorney-in-Fact Under 2011 Durable Power of Attorney of Margaret Teresa Schmidt; in her Capacity As Purported Attorney-in-Fact Under 2017 Power of Attorney of Margaret Teresa Schmidt; as Purported Successor Trustee of the Revocable Inter Vivos Trust, as Amended, of Margaret Teresa Schmidt; as a Beneficiary Under the Last Will and Testament of Margaret Teresa Schmidt, Deceased; as a Beneficiary Under the Revocable Inter Vivos Trust, as Amended, of Margaret Teresa Schmidt; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased; Defendant,

and

LESLIE YVONNE RICHTER, in her capacity as Independent Executor of the Estate of Margaret Teresa Schmidt, Deceased; Individually; and as a Beneficiary of the (Original) Revocable Inter Vivos Trust of Margaret Teresa Schmidt; and as a Beneficiary of the Revocable Inter Vivos Trust of Margaret Teresa Schmidt, as Amended; and as a Beneficiary of the Last Will and Testament of Margaret Teresa Schmidt, Deceased; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased;

Together with

The Estate of ALICIA MARIE WELLER, aka Alicia Marie Schmidt Weller, aka Alicia S. Weller, Deceased, Individually; and as a Beneficiary of the (Original) Revocable Inter Vivos Trust, of Margaret Teresa Schmidt; and as a Beneficiary of the Revocable Inter Vivos Trust of Margaret Teresa Schmidt, as Amended; and as a Beneficiary of the Last Will and Testament of Margaret Teresa Schmidt, Deceased; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased, by and through Robert H. Weller, the duly Court-Appointed Personal Representative of the Estate of Alicia Marie Weller, Plaintiffs,

vs.

WESLEY CUZDEY, Individually; and in his capacity as a "financial advisor"; and as an Agent, Servant, and Employee of the Defendant Insurance Companies; and DERRICK ALMON, Individually; and in his capacity as a "financial advisor"; and as an Agent Defendant Insurance Companies; and UNKNOWN JOHN DOE(S); and BANKERS LIFE AND CASUALTY COMPANY; and CONECO LIFE INSURANCE COMPANY OF TEXAS; and CDOC, INC.; and CNO FINANCIAL GROUP, INC., Defendants,

and

MARGARET ANN MOFFETT, Individually and as Trustee of the Margaret Schmidt Revocable Trust, Cross-Plaintiff,

vs.

BANKERS LIFE AND CASUALTY COMPANY; WESLEY CUZDEY; and DERRICK ALMON, Cross-Defendants.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

Page 1 of 1

(Add pages as required)

LESLIE YVONNE RICHTER, in her §
capacity as Independent Executor of the §
Estate of Margaret Teresa Schmidt, §
Deceased; Individually; and as a §
Beneficiary of the (Original) Revocable §
Inter Vivos Trust of Margaret Teresa §
Schmidt; and as a Beneficiary of the §
Revocable *Inter Vivos* Trust of Margaret §
Teresa Schmidt, as Amended; and as a §
Beneficiary of the Last Will and §
Testament of Margaret Teresa Schmidt, §
Deceased; and as an Heir-at-Law of §
Margaret Teresa Schmidt, Deceased; §

Together with §

The Estate of ALICIA MARIE WELLER, §
aka Alicia Marie Schmidt Weller, aka §
Alicia S. Weller, Deceased, Individually; §
and as a Beneficiary of the (Original) §
Revocable *Inter Vivos* Trust, of Margaret §
Teresa Schmidt; and as a Beneficiary of §
the Revocable *Inter Vivos* Trust of §
Margaret Teresa Schmidt, as Amended; §
and as a Beneficiary of the Last Will and §
Testament of Margaret Teresa Schmidt, §
Deceased; and as an Heir-at-Law of §
Margaret Teresa Schmidt, Deceased, by §
and through Robert H. Weller, the duly §
Court-Appointed Personal Representative §
of the Estate of Alicia Marie Weller, §
Plaintiffs, §

vs. §

WESLEY CUZDEY, Individually; and in §
his capacity as a “financial advisor”; and §
as an Agent, Servant, and Employee of the §
Defendant Insurance Companies; and §
DERRICK ALMON, Individually; and in §
his capacity as a “financial advisor”; and §
as an Agent of Defendant Insurance §
Companies; and UNKNOWN JOHN §
DOE(S); and BANKERS LIFE AND §

CASUALTY COMPANY; and CONECO §
 LIFE INSURANCE COMPANY OF §
 TEXAS; and CDOC, INC.; and CNO §
 FINANCIAL GROUP, INC., §
Defendants, §
 and §
 MARGARET ANN MOFFETT, §
 Individually and as Trustee of the §
 Margaret Schmidt Revocable Trust, §
Cross-Plaintiff, §
 vs. §
 BANKERS LIFE AND CASUALTY §
 COMPANY; WESLEY CUZDEY; and §
 DERRICK ALMON, §
Cross-Defendants. §

**AMENDED ORDER FOR LETTER ROGATORY AND COMMISSION TO
 THE SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA**

TO: THE CLERK OF THE SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA:

The Court, having considered the Motion of Plaintiff Leslie Richter for the Issuance of Letter Rogatory, you are hereby respectfully requested to accept this Letter Rogatory and Commission to authorize the issuance of a subpoena duces tecum directed to:

**STAR ONE CREDIT UNION (BANKING)
 1306 Bordeaux Drive
 Sunnyvale, CA 94089**

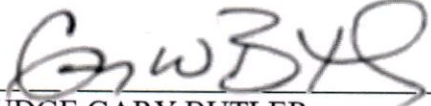
requiring the production of documents and the appearance at a deposition by written questions.

Please cause a subpoena duces tecum to be issued to:

**STAR ONE CREDIT UNION (BANKING)
 1306 Bordeaux Drive
 Sunnyvale, CA 94089**

for any and all documents detailed in the attached Exhibit "1", but not necessarily limited to those records, whether the records are in electronic form or reduced to writing. The documents requested from **STAR ONE CREDIT UNION (BANKING), 1306 Bordeaux Drive, Sunnyvale, CA 94089** are discoverable and potentially relevant to the subject matter involved in the action before this Court. Pursuant to the provisions of the Texas Rule of Civil Procedure, the production of documents and the appearance at a deposition by written questions may be sought by way of a letter rogatory.

SIGNED this the _____ day of _____, 2024.

 2/6/2024

JUDGE GARY BUTLER

EXHIBIT 1

AMENDED DEPOSITION SUBPOENA TO TESTIFY OR PRODUCE DOCUMENTS OR THINGS

To Custodian of Records for:

STAR ONE CREDIT UNION
By and Through Its Registered Agent
Debbie Lewis
6800 Burleson Rd.
Austin, TX 78744,

Pursuant to SECTION 59 OF THE TEXAS FINANCE CODE and RULE 176 OF TEXAS RULES OF CIVIL PROCEDURE you are hereby commanded to be and appear before a Notary Public of **THE LEGAL CONNECTION, 8656 W Hwy 71, Bldg F, Suite 200, Austin, TX, 78735 (p) 512.892.5700, (f) 512.892.5703**, or its designated agent for the Deposition Upon Written Questions to be held at 9:00 o'clock a.m. on the twenty-fourth day after receipt hereof at the offices of CUSTODIAN OF RECORDS, or any other agreed upon place on 11 / 28 / 2023 until lawfully discharged and there under oath to make answers of certain written questions to be propounded to the witness and to bring and produce for inspection and photocopying :

<PLEASE SEE ATTACHED 'EXHIBIT A' FOR LIST OF DOCUMENTS TO PRODUCE.>

and any other such record in the possession, custody or control of the said witness, and every such record to which the witness may have access, pertaining to: **MARGARET TERESA SCHMIDT**, any and all times whatsoever, then and there to give evidence at the instance of the Plaintiff(s), **LESLIE YVONNE RICHTER**, represented by **Megan Lovelady**, Attorney of Record, in that Certain Cause No. **CCL1-PR2020-0688**, pending on the docket of the **IN THE COUNTY COURT AT LAW NO. 1 WICHITA COUNTY, TEXAS**. This Subpoena is issued under and by virtue of the Texas Finance Code Section 59, Rule 200 and 205, TRCP, and Notice of Deposition Upon Written Questions on file with the above named court, styled: **IN THE ESTATE OF MARGARET TERESA SCHMIDT, DECEASED, and LESLIE YVONNE RICHTER, in her capacity as Independent Executor of the Estate of Margaret Teresa Schmidt, Deceased; in her Individual Capacity; in her Capacity as a Beneficiary of the Revocable Inter Vivos Trust; and as a Beneficiary of the Revocable Inter Vivos Trust as Amended; in her Capacity as a Beneficiary of the Last Will and Testament of Margaret Teresa Schmidt, Deceased; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased; Plaintiff, vs. MARGARET ANN MOFFETT, Individually; in her Capacity as Purported Attorney-in-Fact Under 2011 Durable Power of Attorney of Margaret Teresa Schmidt; in her Capacity As Purported Attorney-in-Fact Under 2017 Power of Attorney of Margaret Teresa Schmidt; as Purported Successor Trustee of the Revocable Inter Vivos Trust, as Amended, of Margaret Teresa Schmidt; as a Beneficiary Under the Last Will and Testament of Margaret Teresa Schmidt, Deceased; as a Beneficiary Under the Revocable Inter Vivos Trust, as Amended, of Margaret Teresa Schmidt; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased; Defendant, And LESLIE YVONNE RICHTER, in her capacity as Independent Executor of the Estate of Margaret Teresa Schmidt, Deceased; Individually; and as a Beneficiary of the (Original) Revocable Inter Vivos Trust of Margaret Teresa Schmidt; and as a Beneficiary of the Revocable Inter Vivos Trust of Margaret Teresa Schmidt, as Amended; and as a Beneficiary of the Last Will and Testament of Margaret Teresa Schmidt, Deceased; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased; Together with The Estate of ALICIA MARIE WELLER, aka Alicia Marie Schmidt Weller, aka Alicia S. Weller, Deceased, Individually; and as a Beneficiary of the (Original) Revocable Inter Vivos Trust, of Margaret Teresa Schmidt; and as a Beneficiary of the Revocable Inter Vivos Trust of Margaret Teresa Schmidt, as Amended; and as a Beneficiary of the Last Will and Testament of Margaret Teresa Schmidt, Deceased; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased, by and through Robert H. Weller, the duly Court-Appointed Personal Representative of the Estate of Alicia Marie Weller, Plaintiffs, vs. WESLEY CUZDEY, Individually; and in his capacity as a "financial advisor"; and as an Agent, Servant, and Employee of the Defendant Insurance Companies; and DERRICK ALMON, Individually; and in his capacity as a "financial advisor"; and as an Agent of Defendant Insurance Companies; and UNKNOWN JOHN DOE(S); and BANKERS LIFE AND CASUALTY COMPANY; and CONECO LIFE INSURANCE COMPANY OF TEXAS; and CDOC, INC.; and CNO FINANCIAL GROUP, INC., Defendants, And MARGARET ANN MOFFETT, Individually and as Trustee of the Margaret Schmidt Revocable Trust, Cross-Plaintiff, vs. BANKERS LIFE AND CASUALTY COMPANY; WESLEY CUZDEY; and DERRICK ALMON, Cross-Defendants.**

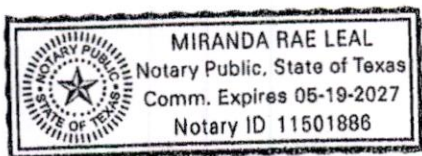
176.8 Enforcement of Subpoena. (a) *Contempt.* Failure by any person without adequate excuse to obey a subpoena served upon that person may be deemed a contempt of the court from which the subpoena is issued or a district court in the county in which the subpoena is served, and may be punished by fine or confinement, or both.

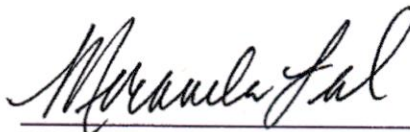
Proof of payment of fees required for fine or attachment. A fine may not be imposed, nor a person served with a subpoena attached, for failure to comply with a subpoena without proof of affidavit of the party requesting the subpoena or the party's attorney of record that all fees due the witness by law were paid or tendered.

HIPAA Compliance: All parties subject to notification in this cause of action have been given sufficient due notice of said Subpoena and request for information. The parties have been provided an opportunity to object to the Subpoena. If any such objections are filed, you will be notified immediately. If you are not notified of any such objections by 11 / 28 / 2023, you should consider no such objections have been received. A copy of the Notice provided to all parties is enclosed.

EXHIBIT 1

WITNESS MY HAND, this the 3 day of November, 2023.

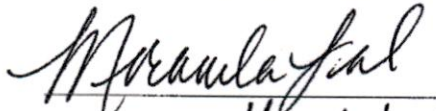



NOTARY PUBLIC

OFFICER'S RETURN

I hereby certify that by my signature below that the attached subpoena was served to STAR ONE CREDIT UNION, By and Through its Registered Agent Debbie Lewis 6800 Burleson Rd. via U.S. Postal Certified Mail, Return Receipt Requested (# 9509071052701583814729) on this the 3 day of November 2023. I am an officer authorized to take depositions in this State, am not a party to the lawsuit detailed above, and am over the age of 18. A copy of the Notice has also been served with this Subpoena to the person named herein. I am authorized pursuant to TRCP 176.4 to serve process on this witness.

Witness Fee Attached: \$1.00


Printed Name: Miranda Leal

Order No.: 60366.002

EXHIBIT 1

EXHIBIT A

Account Holders: **Margaret Teresa Schmidt and/or Margaret Schmidt Revocable Trust**

Member No.: **6816780**

Margaret Teresa Schmidt SSN: **071-22-8118**

Time Period: **04/13/2015 to present**

Description of records:

1. All account statements, including but not limited to checking, savings, and investment accounts, for the above-referenced account and time period.
2. All deposit slips, withdrawal slips, and checks or other negotiable instruments related to the above-referenced account for the same period.
3. Copies of all account application documents, powers of attorney, and signature cards for **Margaret Teresa Schmidt and/or Margaret Schmidt Revocable Trust**.
4. Any and all correspondence, notes, or memoranda related to the accounts and transactions involving **Margaret Teresa Schmidt and/or Margaret Schmidt Revocable Trust**.
5. Any and all records of third-party transactions, including wire transfers, automated clearing house (ACH) transactions, and other fund transfers involving **Margaret Teresa Schmidt and/or Margaret Schmidt Revocable Trust**.
6. Any and all records of credit card accounts, loans, or other financial products held by **Margaret Teresa Schmidt and/or Margaret Schmidt Revocable Trust** at **STAR ONE CREDIT UNION**.

EXHIBIT 1

No. CCL1-PR2020-0688

IN THE ESTATE OF MARGARET TERESA SCHMIDT, :
DECEASED, :
and :
LESLIE YVONNE RICHTER, :
v. :
MARGARET ANN MOFFETT, :
and :
LESLIE YVONNE RICHTER, :
together with The Estate of ALICIA MARIE WELLER, :
v. :
WESLEY CUZDEY, et al., :
and :
MARGARET ANN MOFFETT, :
v. :
BANKERS LIFE AND CASUALTY COMPANY; et al., :

IN THE COUNTY COURT

AT LAW NO. 1

WICHITA COUNTY, TEXAS

DIRECT QUESTIONS TO BE PROPOUNDED TO THE WITNESS

Custodian of Records for: STAR ONE CREDIT UNION

Records Pertaining To: MARGARET TERESA SCHMIDT

Type of Records: <PLEASE SEE ATTACHED 'EXHIBIT A' FOR LIST OF DOCUMENTS TO PRODUCE.>

1. What is your full name, official title, address, and telephone number?

Answer: _____

2. Did you receive a **DEPOSITION SUBPOENA TO TESTIFY OR PRODUCE DOCUMENTS OR THINGS** for the production of **BANKING RECORDS** and other tangible documents pertaining to **MARGARET TERESA SCHMIDT**? (Note: Please look at all the documents received in the package sent.)

Answer: _____

3. Has **STAR ONE CREDIT UNION** made or caused to be made any memoranda, reports, records, notes, photographs, or data compilations, in any form, regarding **MARGARET TERESA SCHMIDT**?

Answer: _____

4. Were the entries made on these memoranda, reports, records, notes, photographs, or data compilations made at the time or shortly after the time of the transaction recorded by these entries? (Note: "Entries" as used here is defined as notes, documents, written items, or anything printed or inputted into standard system of your business, regardless of who entered or created the entry.)

Answer: _____

EXHIBIT 1

5. Were these memoranda, reports, records, notes, photographs, or data compilations under your care, supervision, direction, custody, and/or control?

Answer: _____

6. Was it in the regular course of business of **STAR ONE CREDIT UNION** for an employee, representative, or person with knowledge of the acts or events recorded to make or create the record or transmit information thereof to be included in such record?

Answer: _____

7. Are the records being produced kept in the regular course of business? (*Meaning: Are these records created by your staff as part of their daily duties?*)

Answer: _____

8. Are the records provided the original records or exact duplicates of the original records?

Answer: _____

9. Have you provided all the records and documents requested, including those that may be on microfilm, in any other departments, kept by other employees, or in any other storage medium?

Answer: _____

10. If you answered "no" to Question Number 9, what records and documents did you not include, and why you did not produce those records?

Answer: _____

11. Who has the records you did not produce and listed in Question Number 10? (List name, business name, and telephone number, if available.)

Answer: _____

12. Are the records attached clear, legible and the best possible copies available? If any of the attached records are of poor quality, please explain why.

Answer: _____

13. In the event no records can be found, or a portion of the records cannot be found, are there document archives (i.e., microfiche), document retention or destruction policies which explain their absence? If yes, please identify who has knowledge of those archives or policies for **STAR ONE CREDIT UNION**. (*Note: If all records have been provided "N/A" is acceptable.*)

Answer: _____

EXHIBIT 1

14. What is the retention policy for **STAR ONE CREDIT UNION**?

Answer: _____

WITNESS (Custodian of Records)

Before me, the undersigned authority, on this day personally appeared _____,
known to me to be the person whose name is subscribed to the foregoing instrument in the capacity therein stated, who
being first duly sworn, stated upon his/her oath that the answers to the foregoing questions are true and correct. I further
certify that the records attached hereto are exact duplicates of the original records.

SWORN TO AND SUBSCRIBED before me this _____ day of _____, 20_____.

NOTARY PUBLIC

My Commission Expires: _____

EXHIBIT 1

No. CCL1-PR2020-0688

IN THE ESTATE OF MARGARET TERESA SCHMIDT, :
DECEASED, :
and :
LESLIE YVONNE RICHTER, :
v. :
MARGARET ANN MOFFETT, :
and :
LESLIE YVONNE RICHTER, :
together with The Estate of ALICIA MARIE WELLER, :
v. :
WESLEY CUZDEY, et al., :
and :
MARGARET ANN MOFFETT, :
v. :
BANKERS LIFE AND CASUALTY COMPANY; et al., :

IN THE COUNTY COURT

AT LAW NO. 1

WICHITA COUNTY, TEXAS

**NOTICE OF INTENTION
TO TAKE DEPOSITION UPON WRITTEN QUESTIONS AND
ISSUE SUBPOENA DUCES TECUM OF A FINANCIAL INSTITUTION**

To all parties, by and through their attorneys of record, as listed on the attached Certificate of Service, and the non-party witness(es) listed below:

You will please take notice that twenty-four (24) days from the service of a copy hereof with attached questions, a Deposition Upon Written Questions will be taken of Custodian of Records for:

CHARLES SCHWAB & CO., INC (FINANCIAL SERVICES INSTITUTION)

By and through its Registered Agent:

CT Corporation System
1999 Bryan St., Suite 900
Dallas, TX 75201

STAR ONE CREDIT UNION (BANKING)

By and Through Its Registered Agent

Debbie Lewis
6800 Burleson Rd.
Austin, TX 78744

WELLS FARGO BANK, N.A. (BANKING)

ATTN: Subpoena Processing Chandler
PO Box 29728 S3928-020
Phoenix, AZ 85038

before a Notary Public for **THE LEGAL CONNECTION**
8656 W Hwy 71, Bldg F, Suite 200
Austin, TX 78735
512.892.5700 Fax: 512.892.5703

or its designated agent, which deposition with attached questions may be used in evidence upon the trial of the above-styled and numbered cause pending in the above named court. Notice is further given that a request is hereby made, as authorized under Section 59.006 of the Texas Finance Code, and Rules 176, 200 and 205 of the Texas Rules of Civil Procedure, to the officer taking this deposition to issue a Subpoena Duces Tecum and cause it to be served on the witness to produce any and all records as described on the attached questions and/or Exhibit(s) and any other such record in the possession, custody or control of the said witness, and every such record to which the witness may have access, as described in the attached Deposition Upon Written Questions, pertaining to:

MARGARET TERESA SCHMIDT; ; XXX-XX-8118

EXHIBIT 1

and to turn all such records over to the officer authorized to take this deposition so that photographic reproductions of the same may be made and attached to said deposition.

By: /s/ Megan A. Lovelady

Megan A. Lovelady

SBN: 24093477

LOVELADY LAW OFFICE

409 W. Center Street

Kyle, TX 78640

512.904.0244 Fax 512.233.0747

meg@loveladylawoffice.com

Attorney for Plaintiff(s) LESLIE YVONNNE RICHTER

I hereby certify that a true and correct copy of the foregoing instrument has been forwarded to all Counsel of Record by facsimile, e-mail, e-service, and/or mail delivery on this day.

Dated: 11 / 3 /2023

By: Megan A. Lovelady

CERTIFICATE OF SERVICE

Holly Crampton
LAW OFFICE OF HOLLY CRAMPTON
10900 NW Freeway, Suite 102-B
Houston, Texas 77092
holly@hollycramptonlaw.com

Attorney for LESLIE YVONNE RICHTER, in her capacity as Independent Executor of the Estate of Margaret Teresa Schmidt, Deceased; in her Individual Capacity; in her Capacity as a Beneficiary of the Revocable Inter Vivos Trust; and as a Beneficiary of the Revocable Inter Vivos Trust as Amended; in her Capacity as a Beneficiary of the Last Will and Testament of Margaret Teresa Schmidt, Deceased; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased; and The Estate of ALICIA MARIE WELLER, aka Alicia Marie Schmidt Weller, aka Alicia S. Weller, Deceased, Individually; and as a Beneficiary of the (Original) Revocable Inter Vivos Trust, of Margaret Teresa Schmidt; and as a Beneficiary of the Revocable Inter Vivos Trust of Margaret Teresa Schmidt, as Amended; and as a Beneficiary of the Last Will and Testament of Margaret Teresa Schmidt, Deceased; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased, by and through Robert H. Weller, the duly Court-Appointed Personal Representative of the Estate of Alicia Marie Weller

Anthony W. Bates
Matthew D. Anderson
SHERRILL & GIBSON, PLLC
3711 Maplewood, Suite 200
Wichita Falls, TX 76308
tbates@sgpllc.law
manderson@sgpllc.law
Attorneys for Margaret Ann Moffett

Susan C. Norman
LAW OFFICE OF SUSAN C. NORMAN
P.O. Box 55585
Houston, TX 77255
suenorman@suenormanlaw.com

Attorney for LESLIE YVONNE RICHTER, in her capacity as Independent Executor of the Estate of Margaret Teresa Schmidt, Deceased; in her Individual Capacity; in her Capacity as a Beneficiary of the Revocable Inter Vivos Trust; and as a Beneficiary of the Revocable Inter Vivos Trust as Amended; in her Capacity as a Beneficiary of the Last Will and Testament of Margaret Teresa Schmidt, Deceased; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased; and The Estate of ALICIA MARIE WELLER, aka Alicia Marie Schmidt Weller, aka Alicia S. Weller, Deceased, Individually; and as a Beneficiary of the (Original) Revocable Inter Vivos Trust, of Margaret Teresa Schmidt; and as a Beneficiary of the Revocable Inter Vivos Trust of Margaret Teresa Schmidt, as Amended; and as a Beneficiary of the Last Will and Testament of Margaret Teresa Schmidt, Deceased; and as an Heir-at-Law of Margaret Teresa Schmidt, Deceased, by and through Robert H. Weller, the duly Court-Appointed Personal Representative of the Estate of Alicia Marie Weller

Matthew Rindt
Garrison Lipscomb
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4849 Greenville Ave., Suite 1500
Dallas, TX 75206
Matthew.rindt@gstexlaw.com
Garrison.Lipscomb@gstexlaw.com
Attorneys for Wesley Cuzdey

EXHIBIT 1

Andrew G. Jubinsky
Lance V. Clack
FIGARI & DAVENPORT, L.L.P.
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Dallas, TX, 75202
andy.jubinsky@figdav.com
lance.clack@figdav.com
***Attorneys for Bankers Life and Casualty
Company, Consec Life Insurance Company
of Texas, CDOC, Inc., and CNO Financial
Group, Inc.***

Soña J. Garcia
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sgalvan@grsm.com
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